

\$275

COMMONWEALTH OF MASSACHUSETTS
SUPERIOR COURT
DEPARTMENT OF THE TRIAL COURT

FILED

DEC 01 2025

WORCESTER, SS.

SUPERIOR COURT
CIVIL ACTION NO.

ATTEST:

[Signature]
CLERK

2585CV1668C

COMPLAINT TO FORECLOSE MORTGAGE**PLAINTIFF(S):**

Fidelity Cooperative Bank

City or Town of Residence (include County):

Leominster

Worcester County

DEFENDANT(S):

Cara A. Richard

City or Town of Residence (include County):

Gardner

Worcester County

1+

FROM THE OFFICE OF:

Samantha J. Court, Esq. BBO# 675318

Gelinas & Ward, LLP

106 Merriam Avenue

Leominster, MA 01453

Tel. No. (978) 537-2200 x 309

scourt@gelinasandward.com

DATE: November 24, 2025

1. Your Plaintiff has an interest in a mortgage with the statutory power of sale given by Cara A. Richard to Mortgage Electronic Systems, Inc., "MERS" as nominee to Fidelity Co-Operative Bank, dated June 22, 2016, recorded at Worcester District Registry of Deeds in Book 55518, Page 73, as assigned to Fidelity Cooperative Bank dated October 6, 2025, Book 72653 and Page 284, covering property at 135 Chelsea Street, Gardner, Massachusetts more particularly described in said mortgage.
2. No Defendant(s) is/are in the military service within the meaning of the Servicemembers Civil Relief Act, 50 U.S.C. Sec. 501 (*et seq*).
3. The Plaintiff alleges on information and belief that the Defendant(s) is/are the only person(s) interested in the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as appears of record in the said Registry of Deeds and as known to your Plaintiff.
4. The Plaintiff seeks to foreclose said mortgage described in said paragraph 1 to protect its interest as secured thereby for breach of the conditions thereof and desires to comply with the provisions of the Servicemembers Civil Relief Act.

WHEREFORE, your Plaintiff prays

- A. For an order of notice ordering the defendant(s) to appear and answer this complaint if defendant(s) is/are now, or recently have been, in the active military service and claim the benefits of the Servicemembers Civil Relief Act
- B. For judgment that no party to this action is subject to or is entitled to the protection of the Servicemembers Civil Relief Act.


Samantha J. Court, Esq.
Attorney for Plaintiff

Note: *A metes and bounds description of the property is not necessary.